

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-002085

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
CANDACE L. ALBURN, LICENSE NO. LPC 645,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("the Board") and Candace L. Alburn ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of case number 2012-002085. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent employed and supervised ME from approximately June 2010 through October 2011. After Respondent became aware that ME was not a registered psychotherapist, she continued to a
 - b. Respondent failed to properly supervise ME and to follow-up on Respondent's recommendation that ME become registered as a psychotherapist, which falls below generally accepted standards of practice and supervision.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Board finds that Respondent violated §12-43-222(1)(g) and (n), C.R.S.
6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's license to practice Professional Counseling in the State of Colorado is hereby placed on probation for one (1) year commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order. If at any time Respondent is not in compliance with the terms and restrictions of probation, Respondent shall cease the practice of professional counseling.

8. The period of probation is tolled during any time that Respondent is not practicing in the State of Colorado, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Respondent shall report to the Board if she discontinues the practice of professional counseling or if Respondent is not practicing professional counseling at the time this Order is executed. Respondent shall notify the Board upon resuming the practice of professional counseling.

10. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a Professional Counselor in the State of Colorado, and is in full compliance with all terms of this Order.

11. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that she has satisfied all terms and conditions of probation.

PRACTICE RESTRICTION

12. Commencing from the effective date of this Order and for the duration of the period of probation, Respondent is prohibited from providing supervision to any mental health provider(s).

CONTINUING EDUCATION

13. During the period of probation, Respondent must successfully complete at least ten (10) hours each year of Board-approved professional continuing education courses in the areas of ethics and supervision. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is mailed to the Board. It is understood that Respondent may complete the approved courses online. These hours of continuing education completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory professional Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

14. Respondent will strictly observe the prohibitions set forth in §12-43-222(1), C.R.S., of the Mental Health Practice Act, and will ensure that she practices in accordance with the generally accepted standards of practice.

15. All expenses incurred or associated with the requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

16. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

17. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

18. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

19. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

20. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

21. Respondent shall obey all state and federal laws while this Order is in effect.

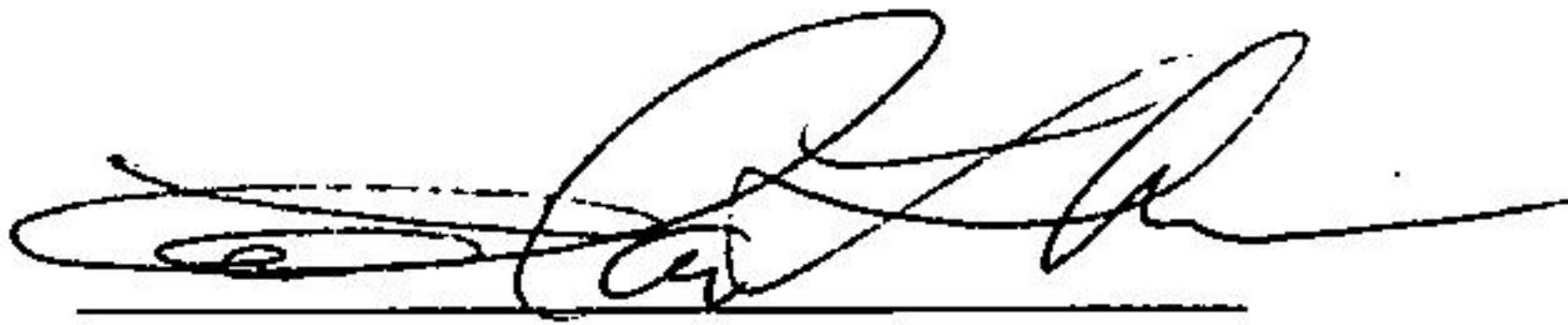
22. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

23. This Order shall become effective when accepted and signed on behalf of the Board.

24. This Order shall be admissible as evidence at any hearing held before the Board.

25. This Order shall be a public record in the custody of the Board.

RESPONDENT



CANDACE L. ALBURN
License No. LPC 645

Dated: 6/22/13

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**



JACQUILINE ARCELIN
Acting Program Director

Effective Date: This ^{on} 29^{1st} day of

^{on} ~~June~~ July, 20^{on} ~~12~~ 13.

APPROVED AS TO FORM:

JOHN W. SUTHERS
Attorney General



Cary R. Alburn III, #26422
Nineteen Old Town Square
P.O. Box 2244
Fort Collins, CO 80522-2244
(970) 221-2266
Fax (970) 221-2277
Email: c.alburn@att.net

Attorney for Respondent
Candace L. Alburn



Robert W. Finke #40756
Assistant Attorney General
Business and Licensing Section
1300 Broadway, 8th Floor
Denver, CO 80203
(720) 508-6376
Fax: (720) 508-6037
Email: robert.finke@state.co.us

Attorneys for the State Board of Licensed
Professional Counselor Examiners